

THE FEDERAL MARITIME COMMISSION

D.F. YOUNG, INC.,

**Complainant,
v.**

**NYK LINE (NORTH AMERICA)
INC.,**

Respondent.

Docket No. 16-02

**JOINT PETITION ADDRESSED TO THE COMMISSION
TO HOLD THIS ACTION IN ABEYANCE PENDING
SETTLEMENT BETWEEN THE PARTIES.**

[46 C.F.R. 502.105]

1. **RELIEF REQUESTED:** Pursuant to Rule 105, the Parties ask that the Commission hold this Action in abeyance pending:
 - (a) Completion of settlement negotiations by the Parties; and
 - (b) Compliance with Rule 72(a)(3) (Requiring that dismissal be ordered by the Commission and that any Settlement Agreement be approved).
2. **CONSENT OF BOTH PARTIES:** Both parties consent to the relief requested by this Petition.
3. **HISTORY OF THE CASE:**
 - (a) This Action was commenced January 29, 2016.
 - (b) The Complainant ("DFY"), as freight forwarder, sues Respondent ("NYK"), as ocean carrier, for unpaid freight forwarder compensation in the principal amount of \$537,213.33 together with interest, reasonable attorneys' fees, and additional amounts under "46 U.S.C. 411034(3)."
 - (c) By Initial Decision served August 1, 2017, the Administrative Law Judge granted NYKs Motion for a Summary Decision while denying DFY's Summary Decision Motion.

- (d) On September 6, 2017, DFY served its Exceptions to the Initial Decision (“Exceptions”), along with a Motion to Recognize certain terms in NYK’s Tariff and Bill of Lading, or alternatively, to reopen and remand the Action. NYK opposed both the Exceptions and the Motion.
- (e) On February 20, 2018, the Commission extended the deadline for issuance of its final decision from February 20, 2018 to April 20, 2018.

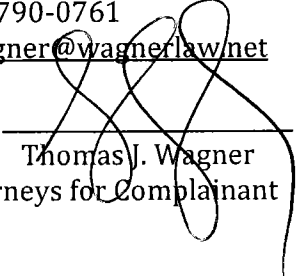
4. **GROUNDS FOR THE PETITION**

- (a) The parties understand that any Final Decision of the Commission can be appealed by the losing Party to the Federal Courts. In lieu of the time, uncertainty, and expense involved in continued litigation, the Parties wish to negotiate a final resolution, compromise, and settlement of the Action and the underlying disputes, claims, and controversies.
- (b) *To date, the amount to be paid in settlement of the Action and the confidentiality of the settlement have been agreed to by the Parties.* What remains is to negotiate a Settlement Agreement finalizing the terms and conditions of the settlement together with the procedure for consummating settlement. That will also have to be approved by the respective boards.
- (c) Issuance of a final decision by the Commission before a Settlement Agreement can be negotiated and the requirements of Rule 72(a)(3) can be complied with would defeat the attempt at settlement.
- (d) The Parties believe they can finalize their Settlement Agreement and make the necessary applications under Rule 72(a)(3) within 20 days of the date of this Petition.

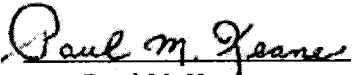
5. The Parties therefore ask that this Petition be granted and that this Action be held in abeyance for 20 days.

Dated: March 27, 2018

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